



File No: EXP202404627

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR

RECOGNITION

OF RESPONSIBILITY AND

VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 6, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA (hereinafter, SIA), through the agreement that is transcribed:

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File No: EXP202404627

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On March 6, 2024, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA with NIF B93536977 (hereinafter, the complained party or SIA).

Through the aforementioned complaint, the facts brought to the attention of this authority are as follows:

The complainant states that he was hired on October 10, 2023, by the complained company (special employment center) as a teleoperator for 6 months on a full-time basis, in the modality of teleworking, requesting him to register in Málaga (130 km from his usual residence), which was accepted.

He also indicates that the coordinator who trained him informed him that he would be included in a WhatsApp group to receive internal work communications. The complainant states that he was unaware that the company was required to obtain consent for the inclusion of his personal phone number, expresses that the company did not request his consent and, furthermore, did not provide him with a corporate phone. He also complains about the excessive volume of notifications that the company sent to his phone, as well as the calls received, which caused him to become ill on October 30, 2023.

Finally, the complainant states that he requests 6,000 euros in damages for the violation of his rights and the stress he was subjected to outside of his working hours. Additionally, he informs that he was dismissed after the trial period.

Along with his complaint, he provides:

b) screenshots of the WhatsApp group of the complained company containing various conversations from the WhatsApp group. The content of these conversations varies between work organization matters—such as instructions to be developed—and some other more personal issues.

c) the employment contract of the complainant with the company, dated October 10, 2023;

d) email exchanges between personnel of the complained company and the complainant regarding his entry into the company and the signing of various documents, dated October 9, 10, 11, and 13, 2023.

SECOND: In accordance with the mechanism prior to the admission of the complaints filed with the AEPD, as provided in Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights (hereinafter, LOPDGDD), which consists of forwarding them to the data protection delegates designated by the controllers or processors of the data, or to them when they have not designated any, and for the purpose indicated in the aforementioned article, on April 17, 2023, the complaint was forwarded to COOLABORO GESTIÓN, S.L. for analysis and response within one month. On April 11, 2024, the complained party submitted a response to the AEPD's Electronic Registry regarding the transfer action and request for information.

In this response, the following was indicated:

"The complainant A.A.A. has not been an employee of the company Coolaboro Gestión SL with CIF B84150960 (...). He was indeed hired on the dates by the company Servicios de Integración de Andalucía with CIF B93536977, with a registered address at ***ADDRESS.1.

"Both companies share an address and a data protection delegate, so we proceed to respond to the rest of the issues raised on behalf of Servicios de Integración de Andalucía."

"Personnel selection is carried out through the Infojobs employment portal, (...). By registering as a job seeker, he expressly authorizes the offering company to contact him through the means listed in his curriculum vitae, including his mobile phone number. We attach screenshots obtained from the Infojobs employment portal with the authorization of the person":

Excerpt from the mentioned Infojobs employment portal: "Infojobs is part of Adevinta Spain, S.L.U ("Adevinta Spain"). At Adevinta Spain, we process your data to be able to offer you our services and improve them day by day. We can

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collect your data when you register or while using Infojobs, both on the web and in the app. (...) upon registration, we will ask you to provide your name or email address so that companies can contact you, (...)"

"(...), in the initial training (...), it is explained to teleworking individuals that, due to not being in the same physical workspace, they can use the WhatsApp tool to receive instructions that require immediacy and at the same time raise any questions they may have related to their work to their coordinator. It is also suggested to the individual that

- These instructions and resolution of doubts be raised through a WhatsApp group in which the workers who share the same service participate to facilitate the necessary sharing of information.
- The use of the WhatsApp tool is voluntary. If a person does not want to use this tool, they can receive instructions via email, indicating that in this case, the immediacy of response from the coordinator to the questions raised by the worker is lost.
- In order to facilitate digital disconnection and not use the personal mobile phone for work purposes, it is recommended that the individual use the "WhatsApp Web" application from the computer provided by the company and that the WhatsApp group be muted outside of working hours."

"As a result of this complaint, the following measures have been proposed internally:

- Explicitly reflect in the employment contracts the consent for the use of the WhatsApp tool as well as the recommendation for use through WhatsApp Web and digital disconnection from the group outside of working hours.
- Analyze other alternative communication tools to WhatsApp for communication with individuals who perform their work in telework mode."

THIRD: On 03/06/2024, after analyzing the documentation in the file, a resolution was issued by the Director of the Spanish Agency for Data Protection, agreeing to the inadmissibility of the complaint. The resolution was notified to the appellant on 03/06/2024, as evidenced in the file.

FOURTH: On 07/06/2024, the complaining party filed a discretionary appeal for reconsideration through the Electronic Registry of the AEPD, against the resolution issued in file EXP202404627, expressing their disagreement with the contested resolution, requesting that the initial complaint submitted to the AEPD be admitted for processing.

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FIFTH: On 22/07/2024, the appeal filed was sent to the responding party in accordance with the provisions of Article 118.1 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) for the purpose of allowing them to formulate allegations and present the documents and justifications they deemed appropriate. The responding party submitted a written statement of allegations on 24/07/2024.

SIXTH: On 06/09/2024, the Director of the Spanish Agency for Data Protection resolved to uphold the

appeal for reconsideration filed against the resolution issued on 03/06/2024, and to admit the initial complaint submitted to the AEPD for processing in accordance with the provisions of Article 65 of the LOPDGDD.

The main arguments contained in the favorable resolution of the appeal were as follows:

First, it should be noted that the initial complaint correctly identifies SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA, S.L. and provides the signed employment contract with that company SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA, S.L.; likewise, in the appeal for reconsideration, it correctly identifies the resolution against which it appeals and the file number of the procedure, so that the factual error pointed out in no way invalidates the initial complaint or the appeal for reconsideration. Entering into the substance of the matter, it is an undisputed fact that the responding party used the personal phone number of the appellant, including them in a WhatsApp group, sending work-related communications outside of their working hours.

Furthermore, contrary to what the responding party claims, they have not provided the file with the clauses and authorizations through which the appellant supposedly consents to this processing. They also do not prove to have offered workers an alternative to using their personal phone for communications.

According to Guidelines 5/2020 on consent in the sense of Regulation (EU) 2016/679, version 1.1 adopted on May 4, 2020, by the European Data Protection Board, consent may not be freely given in situations where there is a power imbalance, such as in the workplace.

In this context, when the employer uses the personal contact data of workers and shares it with other workers, whether by email or through instant messaging, as a "necessary" means for the development of the contractual relationship between employees and the company, the processing of this data cannot be based on consent, as consent should not be considered freely given when the individual does not have true or free choice or cannot refuse or withdraw their consent without suffering any detriment (recital 42). This prevents this basis of legitimacy from being appropriate to substantiate such processing for this purpose, as the dynamics of the employment relationship would depend on whether the employee freely consents or not.

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treatment. Therefore, consent cannot be the basis for legitimacy in this case.

In the present case, the responding party itself acknowledges that the alternative means of communication supposedly offered to the workers (which is not evidenced) is not equivalent to the use of WhatsApp. On the other hand, the responding party, by admitting the existence of this alternative, recognizes that the use of the personal number on WhatsApp, revealing this data to all other workers, is not a "necessary" means, as there are less harmful alternatives for their right to data protection that are not used by default unjustifiably.

The worker has the right to maintain control over the personal data that pertains to them. Therefore, when the contact data used by the employer is not corporate but rather personal to the workers, the processing of such data, including its disclosure to other colleagues, cannot be justified on the basis of legitimacy contemplated in Article 6.1.b) of the GDPR. The processing of the employee's personal phone could be based on legitimate interest, but the employer must weigh and justify the "necessity" of its use.

However, as of the date of this document, the responding party has not adequately justified this necessity, nor the impossibility of using other more appropriate means to contact workers who are no longer external candidates but are immersed in their organization.

SEVENTH: According to information obtained from the Axesor report, the responding party is a Limited Company established in 2017 with a capital of 12,000 euros. There is no data available regarding its business volume.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

III

Preliminary Issues

It should be noted that Article 4 of the GDPR, Definitions, in its paragraphs 1, 2, and 7, states the following:

"1) 'personal data': any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more specific elements of the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person;

"2) 'processing': any operation or set of operations performed on personal data or sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure, or destruction;

"7) 'data controller' or 'controller': the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union law or the law of the Member States, the controller or the specific criteria for its designation may be provided for by Union law or the law of the Member States."

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data carried out by the party.

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Claim regarding the collection, use, and storage of personal data of individuals such as: name and surname and phone number.

The party being claimed against carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR.

On the other hand, paragraph 11 of the aforementioned Article 4 GDPR states the following:

"11) 'consent of the data subject': any freely given, specific, informed, and unambiguous indication of the data subject's wishes by which they, by a statement or a clear affirmative action, signify agreement to the processing of personal data relating to them."

IV

Unfulfilled obligation: Article 6.1 of the GDPR

Article 6.1 of the GDPR, Lawfulness of processing, states:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the performance of a contract to which the affected party is a party or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the controller or by a third party, provided that such interests do not override the interests or fundamental rights and freedoms of the affected party requiring the protection of such data. Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the controller, to protect the vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller.

The facts revealed in this complaint materialize in that the party being claimed against has included the claiming party in a WhatsApp group to receive internal communications without it being established that such processing has a legitimate basis as indicated in the transcribed provision.

Thus, in this case, the claiming party has stated that their personal phone number had been included by the party being claimed against in a WhatsApp group of the company's employees for the purpose of receiving internal work communications. However, the inclusion of the claiming party's personal phone number in that WhatsApp group also resulted in the claiming party receiving work-related communications outside of their working hours, as well as more personal information—since the documentation provided along with the complaint also includes the exchange of messages related, for example, to the wedding of one of the group members' daughters. Such processing was carried out without obtaining the consent of the claimant and without any other legitimate basis as provided for in Article 6 of the GDPR being established. It should be noted that it is the responsibility of the data controller to demonstrate that they have a legitimate basis for processing.

Therefore, in accordance with the indications available at this moment regarding the initiation of sanctioning proceedings, it is considered that the known facts could constitute an infringement attributable to the party being claimed against, for violation of Article 6.1 of the GDPR.

V

Classification of the infringement of Article 6.1 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;"

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On its part, the LOPDGDD in its article 71, Infractions, states that: "Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those that are contrary to this organic law, constitute infractions."

And in its article 72, it considers for the purposes of prescription that: "Infractions considered very serious:

1. According to what is established in article 83.5 of Regulation (EU) 2016/679, the following infractions are considered very serious and will prescribe after three years, which involve a substantial violation of the articles mentioned therein and, in particular, the following:

(...)

b) The processing of personal data without any of the conditions for lawful processing established in article 6 of Regulation (EU) 2016/679 being met.

(...)"

VI

Proposal for sanction for the infringement of article 6.1 GDPR

In order to establish the administrative fine that should be imposed, the provisions contained in articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 5, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in article 58, paragraph 2, letters a) to h) and j). In deciding to impose an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage and detriment they have suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the data controller or processor to mitigate the damages suffered by the data subjects;

d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have implemented pursuant to articles 25 and 32;

e) any previous infringement committed by the data controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

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h) the manner in which the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under article 40 or to certification mechanisms approved under article

42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.

In relation to letter k) of article 83.2 of the GDPR, the LOPDGD, in its article 76, "Sanctions and corrective measures," establishes that:

"2. In accordance with the provisions of article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

a) The continued nature of the infringement.

b) The connection of the infringer's activity with the processing of personal data.

c) The benefits obtained as a result of the commission of the infringement.

d) The possibility that the conduct of the affected party may have induced the commission of the infringement.

e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.

f) The impact on the rights of minors.

g) Having, when not mandatory, a data protection officer.

h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any data subject."

According to the transcribed provisions, for the purpose of determining the amount of the sanction to be imposed in this case for the infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR for which the claimed party is responsible, the imposition of a sanction of 2,000.00 euros is deemed appropriate.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA, with NIF B9353697, for the alleged infringement of article 6.1 of the GDPR, classified in article 83.5.a) of the GDPR.

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SECOND: TO APPOINT Instructor R.R.R. and Secretary S.S.S., indicating that either of them may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD. TO INCORPORATE into the sanctioning file, for evidentiary purposes, the claim filed by the claimant and its documentation, the documents obtained and generated by the Inspection Services; all of which are part of the file.

FOURTH. THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, and Article 58.2.b) of the GDPR, the sanction that may correspond for the violation of Article 6.1 of the GDPR would be 2,000.00 euros, without prejudice to what results from the instruction.

FIFTH. TO NOTIFY this Agreement to the INTEGRATION SERVICES OF ANDALUSIA, with NIF B9353697, expressly indicating their right to a hearing in the procedure and granting them a period of TEN WORKING DAYS to submit allegations and propose the evidence they deem appropriate. In their written allegations, they must provide their NIF and the procedure number that appears in the heading of this document.

If no allegations are made to this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, they may acknowledge their responsibility within the period granted for the formulation of allegations to this initiation agreement; which will entail a 20% reduction of the sanction to be imposed in this procedure. With the application of this reduction, the sanction would be

established at 1,600.00 euros, resolving the procedure with the imposition of this sanction. Similarly, they may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a 20% reduction of its amount. With the application of this reduction, the sanction would be established at 1,600.00 euros, and its payment will imply the termination of the procedure, without prejudice to the measures that may be imposed.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the total amount of the sanction would be established at 1,200.00 euros.

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In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or appeal in the administrative route against the sanction. For these purposes, in case of opting for either of them, they must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

In the event that they choose to proceed with the voluntary payment of any of the amounts indicated above (1,600.00 euros or 1,200.00 euros), they must make it effective by depositing it into account number ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are adhering.

They must also send the proof of payment to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount deposited. In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to them will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeapd.gob.es), and that, if they do not access them, their rejection will be recorded in the file, considering the procedure completed and continuing the process. They are informed that they can identify an email address to this Agency to receive the notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Lorenzo Cotino Hueso
President of the Spanish Agency for Data Protection

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SECOND: On April 9, 2025, SIA proceeded to pay the sanction in the amount of 1,200.00 euros making use of the two reductions provided in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, to the extent that they do not contradict them, by the general rules on administrative procedures in a subsidiary manner."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures," provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the latter has been justified as inappropriate, voluntary payment by the presumed responsible party at any time prior to the resolution will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of the initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

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III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notified initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 1,200.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, SIA proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with paragraph 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the presumed responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any

others arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 2,000.00 euros.

After SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, which results in the final amount of 1,200.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202404627, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO NOTIFY this resolution to SERVICIOS DE INTEGRACIÓN DE ANDALUCÍA.

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FOURTH

: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility on the withdrawal or renunciation of any action or appeal in the administrative pathway, this resolution shall be final in the administrative pathway and fully enforceable from the date of its notification.

In accordance with the provisions established in Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative pathway as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeaepe.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

936-200325

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